

plead “facts which show how, when, where, to whom, and by what means the representations were tendered.

Fraud also requires that specific facts be pleaded to show “justifiable reliance” on a defendant’s misrepresentation. (*Glaski, supra*, 218 Cal.App.4th at 1090.) This requires a fraud plaintiff to set “forth facts to show that his or her actual reliance on the representations was justifiable, so that the cause of the damage was the defendant’s wrong and not the plaintiff’s fault.” (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1066.) The Cuppses do not claim to have relied on anything said or done by W Ranch or the Wickhams. The closest the Cuppses come is in claiming “(h)ad (they) known the” LLC was suspended “they would not have boarded their horses at W Ranch given such level of dereliction of duties.” (SACC ¶12.)

CU-23-00274 Melendez-Zuniga, Jaqueline et al. vs. State of California, et al.

Defendant Caltrans’ Motion to Compel Plaintiffs’ Responses to Caltrans’ Special Interrogatories (Set One) (Motion to Compel #1 of 3); Motion to Compel Responses to Caltrans’ Request for Production of Documents (Set One) (Motion to Compel #2 of 3); and Responses to Demand for Inspection of Tangible Things (Set Two) (Motion to Compel #3 of 3) are DENIED as Motions 1 through 3 are moot to the extent that each motion sought discovery responses. Each motion was based on the contention that Plaintiffs failed to serve any responses and/or produce documents. Plaintiffs oppose each motion on the ground that Plaintiffs provided responses, rendering Motions to Compel 1 through 3 moot. The Court agrees. In each Motion to Compel, Defendant sought an order compelling Plaintiff to provide responses to each discovery request. Following receipt of Plaintiff’s discovery responses, Defendant’s reply shifts focus to whether the discovery responses are deficient or not. This Court will require a motion to compel further responses to satisfy the procedural requirements outlined in California Rule of Court 3.1345, such as a separate statement, in order for this Court to determine whether the responses are inadequate.

As to Defendant’s Motion as it pertains to attorney’s fees, the Motion is GRANTED. monetary sanctions are issued in the amount of \$4,500 for Motion to Compel #1; \$4,500 for

Motion to Compel #2; and \$1,250 for Motion to Compel #3 against Plaintiffs Jaqueline Melendez-Zuniga, Magaly Cortes Medina, and Vania Figueroa-Cabrales, which must be paid within 45 days after service of this order.

The court shall impose monetary sanctions against a party, person or attorney who unsuccessfully makes or opposes a motion to compel, unless the court finds that a party acted with substantial justification or other circumstances that make the imposition of the sanction unjust. (Cal. Code of Civ. Proc. §§2030.290, 2031.300.) California Rules of Court Rule 3.1348 states “(t)he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though...the requested discovery was provided to the moving party after the motion was filed.” A court can find that there is no substantial justification when a party served discovery responses on the night before the hearing on the discovery motion when the party failed for months to produce documents and discovery responses. (*Deck v. Developers Investment Co., Inc.* (2023) 89 Cal.App.5th 808, 831.) Even when it is highly disputed whether the last-minute production was full, “(i)t is enough that it was untimely in the extreme and only done once Plaintiff had incurred the cost of bringing a motion to compel.” (*Ibid.*)

Here, the motions to compel were filed and served in March 2026, which still resulted in months-long failure to comply with Plaintiffs’ discovery obligations. Discovery responses were dated approximately three months later, June 8, 2026, ensuring they would be served before the original hearing date for the motions to compel, which was June 25, 2026. As a result, it appears that although the discovery motions are moot, Plaintiffs were only motivated to produce discovery responses as the result of Defendant’s motions to compel.

CU-25-00205 City of Hollister v. The Baler Bar and Grill, et al.

The Court read and considered Plaintiff’s Case Management Statement. The Case Management Conference is continued to October 1, 2026, at 1:30 p.m.